



30-Sep-2024

Dear Rizwan Khan,

We are delighted to extend this offer of employment to you for the position of Software Engineer at NGI Ventures Pvt. Ltd. We believe that your skills, experience, and enthusiasm will contribute significantly to our team and help us achieve our objectives.

Please find below the details of your employment offer:

Start Date: 03-Oct-2024

Next Review Date: 30-Sep-2025

Annexure-1 (Salary Bifurcation)

SALARY STRUCTURE	Bifurcation Gross Salary Per year (INR)	Bifurcation Gross Salary Per month (INR)
SALARY BREAK-UP		
Basic Pay	4,50,000	37,500
House Rent Allowance	2,25,000	18,750
Car Running Expenses for official purpose	28,800	2,400
Phone/Internet Bills Reimbursement	24,000	2,000
Academic Allowance	12,000	1,000
Leave Travel Allowance	22,500	1,875
Helper Allowance	0	0
Special Allowance	94,465	7,872
Fixed Compensation - (A)	8,56,765	71,397
Loyalty Bonus* (Payable with salary of Oct-2025)	50,000	0
Signing Bonus* (Payable with Salary of MMM-YYYY)	0	0
Bonus - (B)*	50,000	0
Employer PF Contribution	21,600	1,800
Gratuity**	21,635	1,803
Contributions - (C)	43,235	3,603
Cost to Company CTC (A+B+C)	9,00,000	75,000
* Bonus: You must be an active employee of NGI Ventures Pvt Ltd on bonus disbursement day to receive it.		
** Gratuity shall apply as per the "Gratuity Act 1972		

The above-mentioned compensation is a gross salary and is subject to income tax deductions from your salary at source as per prevailing laws and regulations.



Compensation: Your remuneration package will adhere to the terms outlined in Annexure 1 as specified above in the offer letter.

Paid Time Off: Employees will qualify for paid annual leave and public holidays according to the guidelines outlined in the Employee Handbook.

Learning and certification: Learning and growing is an integral part of NGI. We encourage employees to pursue training and certifications that enhance their skills and knowledge. Approved training and certification expenses will be reimbursed in accordance with the policies outlined in the Employee Handbook.

This offer is contingent upon the successful completion of any background checks or screenings that may be required by NGI Ventures Pvt. Ltd. You will be eligible for all company benefits available to employees in similar positions.

Please review this offer and employment agreement carefully and indicate your acceptance by signing latest by 01-Oct-2024.

As you know that we have invested time and effort to bring you on board and once you accept this letter, you are confirming to join our company and stay with us a minimum of 6 months, in case of failure to serve the minimum tenure you will be liable to pay a penalty of 71,397 INR.

We are excited about the opportunity to welcome you to our team and look forward to your contributions. If you have any questions or require further clarification, please do not hesitate to contact our VP, People Operations at hr_nextgeninvent.com.

The employment agreement is enclosed.

NGI Ventures Pvt. Ltd.

By:

Name: [Khushbu Dadoo]

Title: Chief Operating Officer

Rizwan Khan

2024 / 10 / 01

Employment Agreement

EMPLOYMENT AGREEMENT

THIS EMPLOYMENT AGREEMENT (hereinafter referred to as the “**Agreement**”) is made and executed at Oct 03, 2024 (the “**Effective Date**”) by and between:

NGI Ventures Private Limited, a company limited by shares incorporated under the Companies Act 2013 under Registration Number CIN No.: U74900UP2014PTC063227 and having its registered office at B-70, 3rd Floor, Sector 67, Noida (UP), India – 201301 (hereinafter referred to as “**Employer**” or “**Company**”), which expression shall unless it is repugnant to the context or meaning thereof be deemed to mean and include any and all his heirs, legal representatives, administrators, executors, associates, affiliates and permitted assigns) ; AND

Rizwan Khan d/o or s/o Zarrar khan, residing at jali karanj gali Abdul qadar siddiqui ward no 28 burhanpur MP 450331 with PAN Number DUHPK1301Q and Aadhar Number 977745080439 (hereinafter referred to as “**Employee**”), which expression shall, unless repugnant to or inconsistent with the context or meaning thereof, mean and include any and all her legal heirs, representatives, administrators, executors and successors)

*The Employer and Employee is hereinafter collectively referred to as “**Parties**” and individually as “**Party**”.*

RECITALS

- A. Supersede. This Agreement supersedes and replaces in its entirety any existing employment agreement by and between the Employee and the Employer as of the date of this Agreement. Both parties acknowledge and agree that this provision does not trigger any termination, expiration, restart of probation or other rights that might be available to Employee under any prior existing employment agreement.
- B. The Employer is engaged in providing strategy, technology, operations and data management services. (“**Business**”);
- C. The Employer has offered employment to the Employee for the post of Software Engineer starting from the Effective Date; and
- D. The terms and conditions contained herein must be read as a part of the new hire joining form and other agreements as well as all of Employer's current policies and code of conduct (as the same may be reviewed by the Employer from time to time). These terms and conditions contained herein and the policies shall be subject to modifications, from time to time, upon notice to you.
- E. The Employee has hereby unequivocally accepted the employment subject to the terms and conditions specified herein below in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth in this Agreement, and for other good and valuable consideration, the sufficiency of which is acknowledged by the Parties, the Parties hereby agree as follows:

1. DEFINITIONS

- 1.1 “**Business**” shall have the meaning ascribed to it in the Recitals above.
- 1.2 “**Affiliates**” shall mean, with respect to any Person, any other Person that is directly or indirectly Controlling, Controlled by or under Common control with such Person, where “Control” and derivative terms mean the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a Person, whether through the ownership of voting securities, by contract or otherwise that includes but not limited to NextGen Invent Corporation USA and JNV NextGen Private Limited.
- 1.3 “**Connected Person(s)**” with respect to a Person, means any other Person who, directly or indirectly: (a) exercises Significant Influence over such Person, or (b) is under Significant Influence

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of such Person, or (c) is under Significant Influence of the same Person who, directly or indirectly, exercises Significant Influence over such Person.

- 1.4 **“Person(s)”** means any individual, sole proprietorship, unincorporated association, body corporate, corporation, company, firm, partnership, limited liability company, joint venture, Governmental Authority or trust or any other entity or organization.
- 1.5 **“Policies”** shall refer to the employment policies of the company in place and amended from time to time including the HR policy, code of conduct, POSH policy, etc.
- 1.6 **“Significant Influence”** with respect to any Person, means the possession, directly or indirectly, of the power to participate in or influence the financial and/or operating policy decisions of such Person.

2. INTERPRETATION

2.1. Headings and bold typeface are only for convenience and shall be ignored for the purpose of interpretation;

2.2. Unless the context of this Agreement otherwise requires;

- 2.2.1. words using the singular or plural number also include the plural or singular number, respectively;
- 2.2.2. words of any gender are deemed to include the other gender;
- 2.2.3. the terms “hereof”, “herein”, “hereby”, “hereto” and derivative or similar words refer to this entire Agreement or specified Sections of this Agreement, as the case may be;
- 2.2.4. the terms “Section” and “Section(s)” refers to the specified Section and Section(s) of this Agreement;
- 2.2.5. reference to any legislation or law or to any provision thereof shall include references to any such law as it may, after the date hereof, from time to time, be amended, supplemented or re-enacted, and any reference to statutory provision shall include any subordinate legislation made from time to time under that provision;
- 2.2.6. reference to the word “include” shall be construed without limitation; and the Annexures hereto shall constitute an integral part of this Agreement.

3. PLACE OF WORK

- a) Circumstances may arise in some departments where it may prove productive for the operation that an Employee work from home. In these exceptional circumstances the Employer will discuss the opportunity with the Employee and, if mutually agreed upon, the Employee will be permitted with prior written approval by the Employer to work from home on a without prejudice or precedent basis.
- b) Employee acknowledge and agree that during their employment with the Employer, the Employee may be assigned, transferred or deputed to any of the offices, departments or units of the Employer or its Affiliates, Associates, Subsidiaries or Group Companies, whether in India or abroad. In the event of any such assignment, transfer or deputation, Employee may be required to consent to and/or agree to certain other agreements or policies applicable to such an assignment, deputation or transfer or secondment.
- c) Incorporation of Recitals. The recitals set forth in the preamble of this Agreement are hereby incorporated into this Agreement as if fully set forth herein.

4. DUTIES AND OBLIGATIONS

- a) The Employer hereby employs, engages and hires the Employee and the Employee accepts and agrees to such hiring engagement and employment from the Effective Date subject to general supervision and pursuant to the orders, advice and direction of Employer.
- b) It is Employee duty under this Agreement to provide Employer with accurate, correct and updated information about anything and everything that might have an effect (either good or bad) on this employment relationship.
- c) Duties: The Employee agrees that he will serve the Employer faithfully and to the best of his ability during the term of employment, under the direction of the Employer and as per the instructions and parameters provided by the Employer.

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- d) The Employee shall at all times, be subject to and bound by the policies, rules and regulations of the Employer as may be in force from time to time or as may be brought to her/his notice by the Employer.
- e) The Employee agrees that the Employer reserves the right to make reasonable changes to this Agreement and terms & conditions of employment of the Employee. If there are any minor changes, the Employee will be notified in writing. These changes will take effect from the date of the notice or other date as specified.
- f) The Employee agrees that his/her responsibilities, duties, position, compensation, title and/or other terms and conditions of their employment may change from time to time as determined by the Employer. Employer may at any time, in its sole discretion, upon notice to Employee, alter or otherwise modify these roles, responsibilities and duties. Further, at any time, Employee may be required to provide services, directly or indirectly, to Employer and its affiliates and their employees, contractors and clients.
- g) The Employee shall not commit any act or misconduct or commit any acts subversive or harmful to the discipline or business of the Employer, or otherwise misbehave in a manner that would be construed as being in violation of the terms of this Agreement.
- h) The Employee agrees that during the term of her/his employment, they shall work exclusively for the Employer and will not perform or undertake to perform any work (part-time or full-time) or consultation for any one else without the specific prior written permission of the Employer for each such instance of work.
- i) During the term of their employment, the Employee will not accept any salary, commissions, fee or compensation of any kind (other than investment income) from any person, company, firm, corporation or other entity or any one else other than the Employer.
- j) The Employee further promises to never engage in any theft or misappropriation of the Employer's property or attempt to defraud or in any way willfully or recklessly cause loss to the Employer in any manner.
- k) The Employee agrees that during the Employment Period to devote his/her full time and attention to provide services for the business affairs of the Employer and perform such other duties as may be assigned to them by the Employer faithfully and efficiently and shall endeavor to the best of their abilities to achieve the goals as required by the Employer and its Affiliates from time to time. If applicable, each Employee shall submit to Employer timesheets with all required information properly completed, including, but not limited the number of hours worked.
- l) The Salary and Cost to Employer would be considered as part of the confidential information between the Employer and Employee and the Employee undertakes and assures to the Employer that he or she shall not divulge any details thereof to anyone else without the prior written approval of the Employer.
- m) Abandonment of Service: That should Employee remain absent from work, without any prior information or written sanction of leave and/or without any satisfactory explanation for more than five (5) consecutive days including absences when leave applied for but not granted or overstaying Employee leave without prior sanction of extension of leave it will be presumed that Employee is no longer interested in working for the Employer and that Employee have abandoned Employee services of Employer of own accord. In such case Employee will not be entitled to any statutory compensation or other benefits and Employee will be liable for any liability arising out of failure to fulfil contractual obligations and compensate for any monetary losses/liabilities witnessed by the Employer due to Employee uninformed absence.

5. WORK HOURS

- a) The Employee will be required to work for such hours as necessary for the proper discharge of her/his duties to the Employer. The usual working hours of the Employer are from 1:30-10:30 PM IST 5 days a week. However, the Employee may be subjected to change the work hours as per project need at the sole discretion of the Employer.
- b) From time to time, the Employee may be required to work additional hours depending upon the responsibilities of the Employee;

6. PROBATION PERIOD

- a) Any new Employee under the provisions of this Agreement shall serve a probationary period of thirty (30) days of continuous service beginning from the Effective Date (the "Probation Period"). During the probation period the Employer may, in its absolute discretion, terminate the Employee's employment, without assigning any reasons and without notice or cause.

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- b) Notwithstanding anything contained herein, during the probation period, Employer may terminate Employee employment upon One (1) days' notice to Employee, with or without cause, and with or without stating any reasons whatsoever.
- c) If Employee desire to terminate Employee employment during the probation period, Employee shall provide Employer 7 (seven) days prior written notice with reasons for such termination.
- d) Unless otherwise communicated to Employee by Employer and confirmed in writing, the probation period with Employer shall expire thirty (30) days of continuous service after the Effective Date.
- e) The Employer reserves the right to extend the probation at its sole discretion by written notice to the Employee.

7. FULL TIME EMPLOYMENT

- a) The employment of the Employee will be on a applicable full-time basis.
- b) The Employee shall not engage in any activity which could be in direct or indirect competition with the business of the Employer or be to the detriment of the Employer.

8. BENEFITS

- a) The Employee will be entitled to sixteen (16) days paid leave (includes sick leaves or vacation leaves or otherwise) to be taken at such time as may be reasonably determined subject to the needs of the Employer as determined in consultation with the Employer. Employer's leave policy shall apply to Employee and may be modified by Employer at any time, in its sole discretion, upon notice to Employee.
- b) Along with the paid leaves as defined by Employer, the Employee will be entitled to ten (10) additional holidays which will be notified at the beginning of the calendar year.
- c) The Employee may be eligible to participate in employee fringe benefit programs that are made generally available from time to time to the Employer's employees at similar levels at the Employer's sole discretion.
- d) Subject to the general employee expense policies as the Employer may adopt from time to time, the Employer will reimburse the Employee on presentation of vouchers or invoices for reasonable expenses incurred by the Employee in performance of her/his duties in carrying out the terms and provisions of this Agreement. Unless expressly waiver by the Employer, all such expenses shall be pre-approved by the Employer in writing in order for the Employee to be eligible for reimbursement.
- e) The Employer reserves the right to amend, modify or terminate any Employee benefit plans at any time in its sole discretion. The Employee will be entitled to the benefits in accordance with the terms of these plans and benefits as amended from time to time.
- f) The Employee shall not be entitled to any benefits over and above what she/he is entitled to under this Agreement and any statutory benefits accruing under Applicable Law.

9. COMPENSATION

Subject to the following provisions of this Agreement, during the term of employment, the Employee shall be compensated for the services as follows:

- a) The Employee shall receive an annual salary, the amount of which shall be as detailed out in offer letter, subject to such increases from time to time, as determined by the Employer ("Salary"). The Salary shall be payable in instalments received either monthly and in arrears or more or less frequently as per the discretion of the Employer.
- b) During the term of this Agreement, the Salary of the Employee shall be paid by means of bank transfer, cheque or any other method convenient to the Employer,
- c) The Salary set out hereunder is subject to annual review in accordance with the Employer's policies though there shall be no obligation on the Employer to increase such salary at any point and except at its sole discretion.
- d) The Salary payable hereunder shall be subject to any tax deductions which is normally required to be withheld by the Employer as per statutory requirements from time to time or set-offs applicable to Employee employment. However, the liability of the Employer will be limited only to the tax deductions legally required to be made from the Salary.
- e) Regardless of any action the Employer takes with respect to income tax, the Employee acknowledges that the ultimate liability for all deductions with respect to tax remains his/her responsibility.
- f) Employer may deduct from Employee pay any amount that Employee owes the Employer, including but not limited to the value of any overpayment, or unreturned or damaged property.

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10. COMPLIANCE WITH EMPLOYEEAL POLICIES

- a) The Employee agrees that, during the duration of this Agreement / Employment Period, the Employee shall comply with the any and all policies and procedures established by the Employer from time to time to govern the conduct of employees and/or the workplace.
- b) Employer expects the highest standards of integrity in relation to employees' dealings with Employer's customers, Clients, contractors, agents and with any government official.
- c) For the purposes of this section: a bribe is any gift, loan, fee, reward or other advantage given to or received from any person in order to obtain, retain or direct business or to secure any other improper advantage in the conduct of business and includes a kickback on any portion of a contract payment; and hospitality, entertainment and gifts includes but is not limited to the offer or receipt of gifts, meals, goods, services, favours, loans, trips, accommodation and the use of property or invitations to events, functions or other social gatherings.
- d) Employee is prohibited from offering, giving, authorising, or accepting a bribe in any form. Employee is also prohibited from using any other route or channel to provide a bribe to or receive a bribe from Employer's customers, Clients, contractors, agents or any government official.
- e) Employee is required not to give or receive hospitality, entertainment or gifts if these are intended, or could be reasonably interpreted, as a reward or encouragement for a favour or preferential treatment in connection with Employer's business.
- f) Employee is prohibited from making any direct or indirect contributions to political parties, organisations or individuals engaged in politics, or any charitable contribution or sponsorship as a way of obtaining advantage in business transactions without the prior approval of Employer in writing.
- g) Employee is prohibited from making any direct or indirect illicit or secret payments or transfers of value to government officials and from giving hospitality, entertainment or gifts to government officials without prior authorisation from Employer in writing.
- h) Where the Employee suspect, believe or know that an act of bribery or corruption is being considered or carried out, Employee is required to report this to Employer immediately.
- i) The above shall be governed by the relevant applicable policies of the Employer.
- j) Conflict of Interest: Employee agree that they have disclosed all known potential conflicts of interest. If Employee become aware of any potential conflict between their interests and Employer's business, or an issue with the potential to affect their work performance, they must immediately tell Employer in writing. Employer and Employee will discuss the issue and work out together whether it is a real conflict of interest. Employee must act on any reasonable instructions from Employer about real conflicts of interest. If there is no other reasonable alternative, Employee and Employer relationship may be ended, following the correct process.

10. OWNERSHIP AND TITLE

- a) All documents and letters including information, documents and copies (whether written, printed, electronic, recorded or otherwise and wherever located) relating to the business of Employer which come into Employee possession during the course of Employee employment with Employer shall remain the property of Employer and must be returned to Employer immediately on request. On termination of Employee employment Employee must return to Employer such documents or letters or any other Employer property which may be in Employee possession.
- b) The Employee acknowledges and agrees that all rights, titles and interest in any Confidential Information will remain the exclusive property of the Employer.
- c) The Employee acknowledges and agrees that all information stored in or transmitted by means of facilities, property or equipment owned or controlled by Employer, including but not limited to information recorded on paper or electronically, shall be deemed to be the property of the Employer and may be accessed by the Employer at any time.
- d) All rights, titles and interests in and to all plans, inventions, improvements, ideas, materials, intellectual property, advertising and other work product made, conceived, created, prepared or developed by an Employee for the Employer in connection with or during the performance of duties and services for Employer hereunder, whether published or unpublished (including, without limitation, any worldwide copyrights, trademarks, trade dress, patents, names and slogans) (the "**Works**") shall be the sole property of Employer. The Employee shall retain no rights in or to the same. Employee shall execute, all documents necessary to transfer to Employer all rights, titles and interests in and to any such Work(s).

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- e) All Works created, prepared or developed by an Employee in connection with or during the course of their employment hereunder (whether subject to copyright, patent, design, trade secret, or any other form of intellectual property protection) will be considered and deemed “work(s) made for hire” for the benefit and exclusive ownership of Employer to the fullest extent permitted by law; provided, however, if any such Work (or portion thereof) shall not be legally qualified as a “work made for hire”, or shall subsequently be so held not to be a “work made for hire”, then an Employee agrees to assign to Employer all rights, titles and interests in and to such Works, including but not limited to the worldwide copyrights, extensions of such copyrights and renewal copyrights therein, and further including all rights to reproduce the same in copies, prepare derivative works based thereon, distribute copies thereof, perform and display the same publicly and register the claim of copyright therein.
- f) The Employee, without charge to Employer, shall duly execute, acknowledge, and deliver to Employer all such further papers, including assignments and applications for copyright, trademark or patent registration or renewal, as may be necessary to enable Employer to publish or protect said works by copyright or otherwise in any and all countries and to vest title to said work in Employer, and shall, at Employer's expense, render all such assistance as Employer may require in any proceeding or litigation involving the rights in said Works.
- g) Employee agree that any rights, title and interest whatsoever, including, but not limited to, patents, copyright, trademarks, royalties, trade secret and design rights, mask rights, whether registerable or not, arising or created as a result of the development of and/or the application of any tangible or intangible work product or materials produced by you during or as a consequence of Employee employment, whether alone or in conjunction with others and whether during normal working hours or not, including, but not limited to, any invention, design, discovery, improvement, computer program, documentation, or other material which you conceive, discover or create during or in consequence of employment hereunder ("Work Product") shall belong exclusively to Employer. Employee hereby convey ownership in such rights, title and interest to Employer and its affiliates upon inception or development.
- h) All Work Product shall constitute a work(s) made to use the Work Product and agree not to challenge the validity of Employer's and its affiliates' ownership in the Work Product. Employee hereby forever waive all rights in the Work Product and any results or proceeds therefrom, even if after expiration or termination of Employee employment hereunder. If you have any rights to the Work Product that cannot be assigned to Employer or its affiliates, you hereby unconditionally and irrevocably waive the enforcement of such rights and all claims and cases of action of any kind against Employer and its affiliates and their employees, contractors or clients with respect to such rights and grant to Employer and its affiliates an exclusive, irrevocable, perpetual, worldwide, sub-licensable, fully paid-up and royalty free license to such Work Product, or part thereof. On termination or expiration of Employee employment or this Agreement, you will deliver to Employer all Work Product, including any parts or copies thereof completed, created and/or prepared up through the date of termination and all copies thereof.
- i) Employee agree to, for no further consideration, execute any documents and take any other actions reasonably requested by Employer and its affiliates and their clients and contractors to achieve the objectives of this Section (including waiver of any such rights under applicable laws of India). In the event that Employer is unable for any reason, after reasonable effort, to secure Employee signature on any document needed to perfect the title of Employer and its affiliates, you hereby irrevocably designate and appoint Employer and its duly authorized officers and agents as Employee agent and attorney in fact to act for and on Employee behalf to execute, file and verify such documents and to do all other lawfully permitted acts with the same legal force and effect as if executed by you.
- j) The Employee hereby waives any moral rights that the Employee may have with respect to any Confidential Information and Works.
- k) Employee agree that they will not violate or attempt to violate the intellectual property rights, interests or title of any third party.
- l) Employee obligations under this Section shall remain in effect and survive any termination or expiration of Employee employment or these terms of Employment. Employer shall be entitled to immediate injunctive or similar relief upon a potential or actual breach of this Section by you.
- m) Right to Use Employee's Name and Likeness. Employee hereby irrevocably consent to any and all uses and displays, by the Employer and its agents, representatives and licensees, of Employee name, voice, likeness, image, appearance, and biographical information in, on or in connection with any pictures, photographs, audio and video recordings, digital images, websites, television programs and advertising, other advertising and publicity, sales and marketing brochures, books, magazines, other

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publications, CDs, DVDs, tapes, and all other printed and electronic forms and media throughout the world, including without limitation, all forms of social media, conferences, job portals, sales meetings, at any time during or after the Term of Employment, for all legitimate commercial and business purposes of the Employer and/or its affiliates (“Permitted Uses”) without further consent from or royalty, payment, or other compensation to Employee. Employee hereby forever waive and release the Employer and/or its affiliates and its directors, officers, employees, and agents from any and all claims, actions, damages, losses, costs, expenses, and liability of any kind, arising under any legal or equitable theory whatsoever at any time during or after the Term of Employment, arising directly or indirectly from the Employer and/or its affiliates and its agents’, representatives’, and licensees’ exercise of their rights in connection with any Permitted Uses. The Employer and/or its affiliates will deactivate applicable accounts used by the Employer and/or its affiliates related to the Permitted Uses upon the termination of the Agreement as per company policy and applicable rules in place.

11. RETURN OF CONFIDENTIAL INFORMATION

- a) The Employee agrees that, within 24 hours of request by the Employer or upon termination of this Agreement, as the case may be, the Employee shall turn over to the Employer all Confidential Information belonging to the Employer in any form (including but not limited to all documents, plans, specifications, disks or other computer media), as well as any duplicates or backups made of that Confidential Information in whatever form, in the possession or control of the Employee.

12. NON-SOLICITATION AND NON-COMPETE

- a) The Employee undertakes to the Employer that he/she shall not and shall ensure that none of his/her affiliates shall, during the term of this Agreement in whatever capacity and for a period of one (1) year after the termination of this Agreement, whether the termination shall be voluntary or involuntary, or with or without cause, either on his/her own account or in association with others engage or participate directly or indirectly, whether as a shareholder, director, partner, proprietor, member, agent, distributor, employee or otherwise, within India and around the globe, for whatever reasons, in any business which, involves, relates to or competes with the Business. Competitive Business means a Business which can reasonably be regarded as being in direct competition with Employer (or any of the Employer’s competitor’s direct or indirect affiliates, subsidiaries etc.). As referred to herein, the “Business” of Employer shall relate to the business of Employer as the same is determined by the Board of Directors of Employer from time to time.
- b) That during the term of his/ her employment and for a period of 3 (three) years after any termination of his/ her Employment with the Employer for whatever reason, the Employee, without the prior written consent of the Employer, will not directly or indirectly, for himself/herself or cause through any consultant or recruiter or agency, solicit or attempt to solicit, seek employment, or indulge or engage or offer to join on contractual basis or provide any management, supervisory, consultancy services for any consideration, whether on permanent or temporary basis, whether part time or full time, whether on site or off site with or to, use Confidential Information including but not limited to for whatever reasons:
 - i. any person or entity whose account was serviced by the Employee at the company; or
 - ii. any person or entity who is or has been a customer /client of the Employer or its Affiliates (including but not limited to NextGen Invent and JNV NextGen Private Limited etc), prior to Employee’s termination; or
 - iii. any person or entity the Employer or its Affiliates (including but not limited to NextGen Invent and JNV NextGen Private Limited etc) has targeted and contacted prior to Employee’s termination for the purpose of establishing customer relationship; or
 - iv. any person or entity that has an actual or immediate potential business relationship with the Employer or its Affiliates (including but not limited to NextGen Invent and JNV NextGen Private Limited etc).
 - v. any person or entity which obtained products or services from Employer or its Affiliates (including but not limited to NextGen Invent and JNV NextGen Private Limited etc) at any time during Employee’s employment with Employer; or
 - vi. any person or entity which may have been solicited by the Employee on behalf of Employer or its Affiliates (including but not limited to NextGen Invent and JNV NextGen Private Limited etc); or
 - vii. any person or entity who would have the skills and knowledge necessary to enable or assist efforts by Employee to engage in a Competing Business.

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- c) The Employee undertakes to the Employer that he/she shall not and shall ensure that none of his/her family, affiliates shall, during the term of this Agreement in whatever capacity and for a period of three (3) years after the termination of this Agreement, whether the termination shall be voluntary or involuntary, or with or without cause, either on his/her own account or in association with others engage or participate directly or indirectly, whether as a shareholder, director, partner, proprietor, member, agent, distributor, employee or otherwise, within India or globally, use Confidential Information including but not limited to for whatever reasons:
- i. Recruit, offer employment, solicit to employ or employ any person himself or on behalf of any other employer, any employee including the senior employees and/or technical or sales and marketing staff who have left the employment of the Employer or Affiliate of the Employer during the period of three (3) years immediately preceding the date of cessation of employment of the Employee;
 - ii. Establish, develop, carry on or assist in carrying on or be engaged, concerned, interested or employed in any business enterprise or venture competing with the Business;
 - iii. Solicit or accept business from any person or entity that was a client or customer of the Employer or its Affiliates (including but not limited to NextGen Invent and JNV NextGen Private Limited etc), or prospective client or customer with which the Employer had actively engaged in sales activity, on or within three (3) years before the date of termination of the relationship of the Employee with the Employer and with which the Employee had, directly or indirectly, any contact or responsibility, if such business is competitive, directly or indirectly, with the business or planned business (on the date of termination of Employee relationship with the Employer) of the Employer;
 - iv. Solicit or endeavour to solicit any supplier of the Employer or of any of its Affiliates (including but not limited to NextGen Invent and JNV NextGen Private Limited etc) or use its knowledge of or influence over any such supplier to or for its benefit or for the benefit of any other person carrying on business competing with the Business or with any business of the Employer's Affiliates (including but not limited to NextGen Invent and JNV NextGen Private Limited etc); or
 - v. Act as an advisor, consultant, trustee or agent for any third person who is engaged or proposes to start any business which directly or indirectly relates to the Business.
- d) The Employee acknowledges that the restrictions contained in this section are necessary for the protection of the Employer's Confidential Information, business and goodwill and that the Employee considers them reasonable for such purpose.
- e) Compensation for Loss – That the Employee covenants and agrees that any act on his/her part in contravention to the terms and conditions enumerated above in this section shall be construed to cause or having been caused any Employer's customer/ client not to do business with or to cease doing business with Employer or to reduce the amount of business anticipated or previously done with the Employer or to otherwise alter or affect or modify the actual or potential business relationship with Employer. In such an eventuality the Employee covenants and agrees that the Employer shall have the right to be compensated for the loss of profits arising out/ or in relation to such contravention.
- f) Damages – The Employee agrees and acknowledges that if the Employee fails to comply with any of its obligations under this Agreement or commits any other breach of this Agreement, the Employer will suffer immediate and irreparable harm for which monetary damage to the Employer will not be sufficient. Without prejudice to any rights and remedies otherwise available to the Employer under law or equity, including the right to claim damages for breach, the Employer shall be entitled to specific performance, injunctive and other equitable relief as a remedy for any breach of this Agreement by the Employee. The parties agree that quantifying losses arising from Employee failures to comply with any of its obligations and any other breach of the Agreement is inherently difficult insofar, and further stipulate that the agreed upon sum for partial damages is not a penalty, but rather a reasonable measure of partial damages, based upon the parties' experience in the industry and given the nature of the Agreement. Nothing herein shall limit the Employer's right to pursue actual damages and the Employer shall have the right to pursue all remedies available to it at law including, without limitation, a decree of specific performance and/or injunctive relief and other equitable relief as a remedy for any breach of this Agreement by the Employee.
- g) Injunctive Relief – That the Employee covenants and agrees that a breach by the Employee of the provisions of this Agreement will constitute such damage as will be irreparable and the exact amount of which will be impossible to ascertain and, for that reason, agrees that in such eventuality, the Employer will be entitled to an injunction to be issued by any court of competent jurisdiction

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restraining and enjoining the Employee under the present law for the breach of this Agreement in addition

13. REPRESENTATIONS AND WARRANTIES

- a) The Employee agrees that during the term of employment under this Agreement, they are not presently under and will not be in the future course of employment with the Employer become subject to any obligation to any person or entity which is inconsistent or in conflict with the Employee's employment with the Employer and its Affiliates or which would prevent, limit or impair in any way the performance of Employee's duties towards the Employer and its Affiliates.
- b) The Employee represents and warrants that they will not bring with them any confidential or proprietary information of any former employer, and that the Employee is not subject to any agreement or obligation with a former employer that would prohibit the Employee's employment by the Employer.
- c) Employee warrants that Employee employment will not violate or otherwise conflict with any agreement (oral or otherwise) to which they are or have been a party to.
- d) Employee warrant that they have satisfactorily completed all of Employee obligations under any employment contract or other contract or agreement with person(s) or entity(ies) that previously employed or contracted with them and that any previous employment contract and/or relationships have terminated and/or expired prior the effective start date and/or Effective Date with Employer.
- e) Employee warrant that they will comply with all of Employer's policies and standards in effect from time to time and shall perform Employee services in a professional manner and in a manner consistent with the ethical and professional standards of Employer or otherwise as applicable to the services provided by them hereunder.
- f) Employee warrant that they possess all the requisite certificates, licenses, permits, work visas, clearances to be able to lawfully and rightfully perform the services as required hereunder
- g) Employee warrant that they have disclosed any potential, pending, on-going and convicted criminal records along with any potential, pending, on-going legal action against them that they have and any relevant personal information

14. INDEMNIFICATION

- a) The Employee hereby agrees to indemnify, defend, save, and hold harmless the Employer, its Affiliates, shareholders, officers, directors, and other agents from for any losses or damages sustained by Employer and its Affiliates, shareholders, officers, directors, and other agents which is caused by or related to Employee breach of any of the provisions contained in this Agreement and against all claims, liabilities, causes of action, damages whether in judicial proceedings, or whether out of court, including without limiting the generality of the foregoing, attorneys' fees and all costs and expenses which arise out of or related to his/her performance under this Agreement.

15. ANTI-DEFAMATION

- a) The Employee expressly agrees that they shall not, during the course of this Agreement and also Employee's employment with the Employer, nor at any time thereafter, unless authorized in writing by the Employer, make or publish any statement or make any writings or remark or comment or other expressions, either orally or in writing or in any manner or in any medium whatsoever, which is intended to or would, or could be construed to, or which reasonably may be expected to injure, discredit, prejudice, criticize, embarrass, disparage, besmirch, demean, deprecate, impugn, defame or otherwise (a) the Employer; or (b) the shareholders, officers or directors of the Employer; or (c) Employer 's affiliates, employees, agents, operations, or plans; likewise and/or Employer 's business, reputation, method of doing business, relationships with its customers or suppliers or any other related party or their respective products or services or relations with creditors, regardless of whether such action by Employee would constitute a cause of action for the above. Nor shall the Employee assist any other person, firm or company in so doing. The Employee further agrees that they will not commit damage to the property of the Employer and its affiliates, or otherwise engage in any misconduct, which is injurious to the business or reputation of the Employer and its affiliates.

16. TERMINATION

- a) After the successful completion of the Probation period, The Employee shall provide the Employer with three (3) months advance written notice, in case of resignation in order to allow for an orderly transition period. Acceptance of the resignation shall be at the sole discretion of the Employer. The Employee understands that the Employer, at its sole discretion, can decide to waive off/reduce the notice period as mentioned herein above, without assigning any reason whatsoever.

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Further, if an Employee resigns and seeks waiver of notice period from the Employer, the Employee shall be liable to pay immediately to the Employer the gross salary for the notice period so reduced/waived. However, if on resignation, the Employer decides to waive/reduce the notice period at its sole discretion, Employee will not claim/ demand or raise any dispute regarding any amount towards salary for the period so waived/reduced.

- b) The Employer may terminate the employment agreement with four weeks written notice, unless otherwise negotiated with the Employer. This shall not prevent the Employer from summarily dismissing any Employee without notice for serious misconduct or other good cause in accordance with rules of conduct and this Agreement.
- c) The Employer may terminate Employee's employment under this Agreement as per applicable sections of this Agreement.
- d) Upon termination of the Employee's employment for any reason, unless otherwise requested by Employer, the Employee will be deemed to have been terminated from all positions held with the Employer, without any further action by Employer.
- e) If it is alleged that Employee has engaged in misconduct or serious misconduct, Employer may, after consulting Employee, suspend Employee pending the outcome of any investigation by Employer into that alleged misconduct or serious misconduct. Suspension will be on no pay or otherwise, subject to the discretion of Employer. However, in circumstances where the suspension has been or is likely to be prolonged (for instance where there is an intervening criminal investigation, or where Employee fail or are unable to take full part in the investigation process) Employer may, suspend Employee without pay.
- f) On the event of any disciplinary proceedings are processed against Employee, Employer will have the right to suspend Employee and not to accept Employee resignation and settle accounts after the proceedings are completed. Failure to give notice as per the above will automatically allow Employer to make appropriate deductions during Full & Final Settlement.
- g) For avoidance of doubt in addition to the above: Employer may terminate Employee employment immediately within 24 hours, with or without notice, on the occurrence of the following by the Employee:
 - i. Embezzlement, intoxication or illegal drug abuse, unauthorized absence in excess of Employer leave policy, unauthorized disclosure or misuse or attempted unauthorized disclosure or misuse of Employer's Confidential Information, gross insubordination, or receipt or attempted receipt of any impermissible rebate, kickback or other similar remuneration or consideration in connection with any potential or existing opportunity for Employer and its affiliates and their employees, contractors and clients;
 - ii. Engaging in misconduct (wilful, intentional or otherwise) during or in connection with the performance of Employee obligations hereunder or being arrested, charged or convicted in a criminal proceeding or similar proceeding that involves a matter which Employer believes, in its sole discretion, may affect the performance of Employee obligations hereunder, may affect Employer and/or its affiliates and their employees, contractors and/or clients or may otherwise bring Employer and/or its affiliates and their employees, contractors and/or clients any disrepute, whether or not such matter is directly related to the affairs of Employer and/or its affiliates and their employees, contractors or clients; and/or
 - iii. Involvement in any act of moral turpitude.
 - iv. Upon Employer's notice to Employee, if Employee are in breach of any of the terms contained herein or any of Employer's policies. Any other activity by the Employee of similar magnitude to any of the above as determined by the sole discretion of the Employer.

18. Consequences of Termination

- a) Upon termination or expiration of Employee employment, for any reason, or as otherwise requested by Employer and agreed by Employee in writing, Employee will return to Employer:
 - i. Any property belonging to Employer, such as a laptop computer, mobile phone, access card and other devices with details of any passwords or user ids installed therein; and
 - ii. All Confidential Information and any Work Product, including any documents and information, of whatever description or in whatever form, tangible or intangible, in

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Employee possession, together with copies, notes or summaries of such documents and Employee own working papers which are derived of or based on such documents.

- b) Upon termination or expiration of Employee employment, for any reason, amounts due or payable, from, or to Employer by Employee shall be settled in full and an acknowledgment of such settlement shall be recorded in writing.
- c) Upon termination or expiration of Employee employment, for any reason, Employer shall be entitled to, at its sole discretion, pursue any remedy available in law or in contract to ensure settlement of any amounts owed by Employee. Further, Employer shall be entitled to, at its sole discretion, withhold the relieving letter and all other documents regarding Employee employment hereunder.
- d) Any termination of employment or this Agreement / Agreement by Employer shall be without any further liability of Employer and its affiliates and their employees, contractor or clients to Employer or to Employee successors-in-interest or assigns.

17. REMEDIES

- a) Notwithstanding anything contained herein, the Employee acknowledges that a breach of any of the covenants contained in this Agreement or if the Employee fails to comply with any of its obligations under this Agreement or commits any other breach of this Agreement could result in irreparable injury to the Employer for which there might be no adequate remedy at law, and that, in the event of such a breach or threat thereof, the Employer shall be entitled to obtain remedies available under Applicable Law including but not limited to injunctive relief through any court of competent jurisdiction. The injunctive remedies are cumulative and are in addition to any other rights and remedies that the Employer may have in law or in equity.

18. GOVERNING LAW AND JURISDICTION

- a) This Agreement will be construed and governed in accordance with the laws of New Delhi, India. In the event of any dispute arising out of this Agreement (the “**Dispute**”), either Party may send a Dispute notice communicating the subject-matter of the Dispute to the other Party (“**Dispute Notice**”). Upon the other Party receiving the Dispute Notice, the Parties shall make reasonable best efforts to resolve the Dispute amicably. If the Parties are unable to resolve the Dispute within a period of 30 days from the Dispute Notice, either Party may refer the Dispute to arbitration.
- b) Subject to the above, all disagreements arising in connection with this Agreement (“Disagreement”) or the terms thereof; shall be initially referred to in writing for mediation to the Authorized Representatives, which will be nominated by both the Parties. If any “Disagreement” remains unresolved for thirty (30) days from the initial referral, either Party may request a further reconciliation between functional head of both parties and/or Representatives (of both the Parties) within a further ten (10) days.
- c) The location of any Disagreement by way of mediation and reconciliation shall be held at the offices of Employer if not its Legal representatives.
- d) In case the best efforts, at mediation and reconciliation fail, then, the Parties shall be at liberty to commence Arbitration proceedings under the Arbitration and Conciliation Act, 1996 (as amended from time to time), by an arbitration panel composed of 1 (one) single arbitrator, fluent in English. The number of arbitrators shall be one and shall be a legal professional of more than ten years’ experience. The arbitrator shall be impartially selected by both Parties within 7 (seven) days. The arbitration proceedings shall take place in New Delhi confirmed in writing, and shall be conducted in the English language. The governing law of the contract shall be the substantive law of India. Each Party will bear its own expenses in the Disagreement process and dispute resolution process including mediation, reconciliation and arbitration and will share equally the costs of same; provided, however, that the arbitrators may, in their discretion, award costs and fees to the prevailing Party.
- e) The arbitral award shall be substantiated in writing and shall be final and binding on the Parties. The arbitrator shall decide on the matter of costs of the arbitration.

19. ASSIGNMENT, PUBLIC STATEMENT

- a) This Agreement and Employee employment are personal to Employee and Employee cannot assign, subcontract or transfer Employee obligations hereunder to any other person or entity. Employer may assign this Agreement, in part or whole, upon notice to Employee.
- b) Employee shall not make any announcement concerning Employer and its affiliates and their employees, contractors or clients without Employer's prior written consent and Employee shall not use or disclose the name, trademark, domain name, service mark, logo or any other intellectual property of Employer and its affiliates and their employees, contractors or clients.

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20. AMENDMENTS

- a) This Agreement may only be amended or modified by a mutual consent and written agreement executed by both the Employer and the Employee.

21. NOTICES

- a) Notices, demands or other communication required or permitted to be given or made under this Agreement shall be in writing and shall be provided by email or registered post to the addresses mentioned below:

If to the Employer:

Address: **NGI Ventures Private Limited**, B-70, 3rd Floor, Sector 67, Noida (UP), India – 201301
E-mail: management@nextgeninvent.com

If to the Employee:

Address: jali karanj gali Abdul qadar siddiqui ward no 28 burhanpur MP 450331

E-mail: anrizwan0305@gmail.com

Phone: 8237493132

Government Identification Details: 977745080439

- b) In the event of change in address, the Party whose address is subject to change shall communicate such change to the other Party in writing.
- c) Mode of Communication: Other than general notices, which may be intimated by e-mail, general notice, announcement on Employer's intranet, web site, bulletin e- mail, bulletin boards and other similar postings, notices will be provided to Employee in person, by email or by ordinary post at the Permanent and Corresponding address given by Employee at the time of Employee employment or such other address as may be intimated by Employee to the management thereafter including but not limited to Employee Emergency Contacts.
- d) Language: All notices required to be given by one Party to the other Party and all other communications, documentation and proceedings which are in any way relevant to this Agreement shall be in writing and in English language.

22. MISCELLANEOUS

- a) The clauses, paragraphs and subparagraphs contained in this Agreement are intended to be read and construed independently of each other. If any part of this Agreement is held to be invalid, this invalidity will not affect the operation of any other part of this Agreement.
- b) All matters including those which are not specifically covered under this Agreement shall be governed as per the Policies of the Company as are in force or as communicated to the Employee from time to time
- c) No Party shall be liable to any other if, and to the extent, that the performance or delay in performance of any of its obligations under this Agreement is prevented, restricted, delayed or interfered with, due to any act outside the control of either party including but not limited to cyclones, earthquakes, typhoons, floods, volcano eruptions, pandemics, epidemics, lightening or on account of any war, riots or terrorist attacks ("Force Majeure Event"). The Party claiming a Force Majeure Event shall promptly notify the other Party in writing of such delay or failure in performance, the reason therefore, the expected duration thereof, and its anticipated effect on the Party expected to perform as soon as possible after the event and also keep the other Parties informed of the further developments. The validity and acceptance of the Force Majeure Event shall be at the sole discretion of the Employer. The Party so affected shall use its best efforts to remedy such a cause of non-performance. If the Force Majeure Event is not rectified within a period of 90 days, the Employer shall have the right to terminate this Agreement with prior written notice to the Employee. The Employee is liable for all costs, expenses, and expenditures including, and without

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limitation, the complete legal costs incurred by the Employer in enforcing this Agreement as a result of any default of this Agreement by the Employee.

- d) No failure or delay by the Employer in exercising any power, right or privilege provided in this Agreement will operate as a waiver, nor will any single or partial exercise of such rights, powers, or privileges preclude any further exercise of them or the exercise of any right, power or privilege provided in this Agreement.
- e) This Agreement constitutes the entire agreement between the Parties with respect to the subject matter of this Agreement. This Agreement, supersedes all prior discussions and agreements (whether oral or written, including all correspondence) if any, between the Parties with respect to the subject matter of this Agreement. This Agreement together with the offer letter (and any attachments thereto), are the exclusive and entire agreement between the parties relating to its subject matter, and supersedes all prior and contemporaneous discussions, agreements, negotiations, representations, and proposals relating to the subject matter hereof.
- f) Addendum: This Agreement is to be considered complete and final. However, the field of Software Services is rapidly changing, and the said changes may necessitate amendment or addition to this Agreement. Should such a need arise, the amendment or addendum must be mutually agreed and drawn up as a separate document, signed by both parties indicating their acceptance, and a copy of the signed document must be provided and sent by post to both Parties at their last known registered addresses.
- g) This Agreement will inure to the benefit of and be binding upon the respective heirs, executors, administrators, successors and assigns, as the case may be, of the Employer and the Employee.
- h) This Agreement may be executed in any number of counterparts and by the Parties hereto in separate counterparts, each of which when so executed shall be deemed to be an original and all of which taken together shall constitute one and the same Agreement.

SIGNATURE PAGE

AS **WITNESS**, This Agreement has been signed by the Parties (or by their duly authorised

representatives) on the date stated at the beginning of this Agreement.

NGI Ventures Pvt. Ltd.

Employee:

By: Khushbu Dadoo

Signature: 

(Authorised Signatory)

Name: Rizwan Khan

Designation: COO, India

Address: jali karanj gali Abdul qadar siddiqui ward

Date: _____

City: Burhanpur

State: Madhya Pardesh

Pin code: 450331

Date: 2024 / 10 / 01

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Annexure A

Employee Covenants

Confidentiality and Proprietary Information Agreement

This Confidentiality and Proprietary Information Agreement shall be read together with the Employment Agreement (collectively the “Agreement”) made and entered on 2024 / 10 / 01 (“Effective Date”):

In consideration of employment as an employee or engagement as an independent contractor with NGI Ventures Private Limited, a company limited by shares incorporated under the Companies Act 2013 under Registration Number CIN No.: U74900UP2014PTC063227 and having its registered office at B-70, 3rd Floor, Sector 67, Noida (UP), India – 201301 (the “**Employer**” or “**the Employer**”), the undersigned (the “**Employee**”) agrees and covenants as follows:

1. Employment with Employer as an employee or engagement with Employer as an independent contractor, as the case may be (the “**Engagement**”), will give the Employee access to proprietary and confidential information belonging to Employer, its customers, its Clients, its competitors, and others (the proprietary and confidential information is collectively referred to in this Agreement as “**Confidential Information**”).
2. For the purpose of this Agreement, the term “Confidential Information” shall also include all information, know-how, ideas, designs, rates and prices, documents, concepts, technology, manufacturing processes, industrial, marketing, commercial knowledge, and other materials of a confidential nature and includes but is not limited to any information or data relating to the past, present or future business of a scientific, technical, commercial or financial nature which contains amongst other matters, trade secrets, know-how, patent and ancillary information and other intellectual proprietary or confidential information, disclosed by the Disclosing Party to the Receiving Party whether in writing, pictorially, in machine readable form, on disc, mail or orally, or by any other means/modes of disclosure and including without limitation to any information contained in any written or printed document, hardware, firmware and software, information related to technology and business activities including, but not limited to, communication systems, business outlooks, business plans, financial projections, financial statements, revenue, pricing, trade secrets, computer programs, software, code, software output, screen displays, file hierarchies and user interfaces, formulas, data, inventions, techniques, technology, know-how, processes, ideas, (whether patentable or not), schematics, specifications, drawings, product designs, product plans, pricing, services, strategies, third party confidential information, and corporate and personnel statistics, client and customer lists (potential or actual) and other customer-related information, business model, supplier information, sales statistics, market intelligence, marketing, business working, operations, parent, subsidiaries, affiliates and other business strategies and other commercial information of confidential nature or such information that by its inherent nature and examination of such data and information which is acquired by the Parties, documents as well as standardized product/ instrument concerning the Transaction which are provided by or on behalf of the Disclosing Party (hereinafter referred to as the “Confidential Information”) shall be treated by the Receiving Party as secret and Confidential Information.
3. “Disclosing Party” means a party that discloses Confidential Information (as defined below) under this Agreement. “Receiving Party” means a party that receives Confidential Information under this Agreement. Confidential Information includes but is not limited to customer lists, marketing plans, proposals, contracts, technical and/or financial information, databases, software and know-how. All Confidential Information remains the confidential and proprietary information of Employer.
4. The Receiving Party shall hold all Confidential Information in strict confidence and shall in no event use less than a reasonable degree of care; and shall not, without the prior written consent of Disclosing Party, disclose such information to any person for any reason at any time; provided, however, it is understood that Receiving Party may disclose any of the Confidential Information to the authorized representatives of the Receiving Party who actually might need such material for the purpose of evaluating the proposed Transaction on the condition that, prior to such disclosure, such Receiving Party’s representatives have signed an agreement with non-disclosure provisions no less stringent than those set forth herein.

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5. The Parties agree that during the continuance of this Agreement, the Receiving Party shall not without prior written consent of Employer, disclose or enter into an agreement to supply all or any of the Confidential Information to any third person, except as specifically provided for in this Agreement and shall be used by the Receiving Party, directly or indirectly, solely for the purpose of considering, evaluating and effecting the Employment Agreement and/or Business of Employer.
6. As referred to herein, the "Business of Employer" shall relate to the business of Employer as the same is determined by the Board of Directors of Employer from time to time.
7. Non-Disclosure: Unless otherwise agreed to in advance and in writing and mutually agreed with Employer, the Employee will not use any Confidential Information for any purpose whatsoever other than the performance of this Terms of Employment / Agreement and/or Business of Employer and will not disclose Confidential Information to any third party.
8. The Employer retains all right, title and interest in and to any Confidential Information between the Parties. Nothing in this Agreement is intended to grant any licenses or rights to the Employee under any patent or copyright or any other intellectual property rights in the Confidential Information.
9. The Employee shall not reverse engineer, disassemble or decompile any prototypes, software or other tangible objects which embody the Confidential Information.
10. Within 2 (two) days after written request from the Employer, the Employee shall return or destroy the Confidential Information and certify in writing that, after reasonable investigation and to the best of its knowledge, all Confidential Information in its possession (including all copies, reproductions and extracts thereof) have been returned or destroyed in the manner specified in writing by the Employer.
11. Unless the Parties otherwise agree in writing, Employee's duty to protect and secure Confidential Information shall expire ten (10) years from termination of this Agreement.
12. The Employee may in the course of the Engagement conceive, develop or contribute to material or information related to the Business of Employer, including, without limitation, software, technical documentation, ideas, inventions (whether or not patentable), hardware, know-how, marketing plans, designs, techniques, documentation and records, regardless of the form or media, if any, on which such is stored (referred to in this Agreement as "**Proprietary Property**"). Employer shall exclusively own all Proprietary Property which the Employee conceives, develops or contributes to in the course of the Engagement and all intellectual and industrial property and other rights of any kind in or relating to the Proprietary Property, including but not limited to all copyright, patent, trade secret and trade-mark rights in or relating to the Proprietary Property. For greater certainty, the Employee hereby assigns to Employer any and all rights that the Employee may have or obtain in or to the Proprietary Property. Material or information conceived, developed or contributed to by the Employee outside work hours on Employer's premises or through the use of Employer's property and/or assets shall also be Proprietary Property and be governed by this Agreement if such material or information relates to the Business of Employer. The Employee shall keep full and accurate records accessible at all times to Employer relating to all Proprietary Property and shall promptly disclose and deliver to Employer all Proprietary Property.
13. The Employee shall, both during and after the Engagement, keep all Confidential Information and Proprietary Property confidential and shall not use any of it except for the purpose of carrying out authorized activities on behalf of Employer.
14. The Employee shall return or destroy, as directed by Employer, Confidential Information and Proprietary Property to Employer upon request by Employer at any time. The Employee shall certify, by way of affidavit or statutory declaration, that all such Confidential Information and Proprietary Property has been returned or destroyed, as applicable.
15. The Employee covenants and agrees not to make any unauthorized use whatsoever of or to bring onto Employer's premises for the purpose of making any unauthorized use whatsoever of any trade secrets, confidential information or proprietary property of any third party, including without limitation any trade-marks or copyrighted materials, during the course of the Engagement. The Employee agrees and represents that the Engagement and the execution of this Agreement do not and will not breach any agreement to which the Employee is currently a party or which currently applies to the Employee.
16. At the reasonable request and at the sole expense of Employer, the Employee shall do all reasonable acts necessary and sign all reasonable documentation necessary in order to ensure Employer's ownership of the Proprietary Property and all intellectual and industrial property rights and other rights in the same, including but not limited to providing to Employer written assignments of all rights to Employer and any other documents required to enable Employer to document rights to and/or register patents, copyrights, trade-marks, industrial designs and such other protections as Employer considers advisable anywhere in the world.
17. The Employee hereby irrevocably and unconditionally waives all moral rights the Employee may now or in the future have in any Proprietary Property.

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18. The Employee agrees that the Employee will, if requested from time to time by Employer, execute such further reasonable agreements as to confidentiality and proprietary rights as Employer's customers or Clients reasonably required to protect Confidential Information or Proprietary Property.
19. Regardless of any changes in position, salary or otherwise, including, without limitation, termination of the Engagement, unless otherwise stipulated pursuant to the terms hereof, the Employee will continue to be subject to each of the terms and conditions of this Agreement and any other(s) executed pursuant to the preceding paragraph.
20. Should the Recipient breach any of the provisions of this Agreement to Employer's detriment or damage, the Recipient agrees to reimburse Employer for any loss or expense incurred by Employer as a result of such including without limitation court costs and reasonable legal fees incurred by Employer in enforcing the provisions hereof. Recipient further agrees that any unauthorized use of or disclosure of the Confidential Information will result in irreparable damage to Employer and that Employer shall be entitled to an award by any court of competent jurisdiction of a temporary restraining order and/or preliminary injunction against such unauthorized use or disclosure by the Recipient without the need to post a bond. Such remedies, however, shall not be deemed to be the exclusive remedies for any breach of this Agreement but shall be in addition to all other remedies available at law or equity.
21. Recipient hereby acknowledges (1) that Employer will suffer irreparable harm if Recipient breaches Recipient obligations under this Agreement; and (2) that monetary damages will be inadequate to compensate Employer for such a breach. Employer shall be entitled, without waiving any other rights or remedies, to such injunctive or equitable relief as may be deemed proper by a court of competent jurisdiction. Such remedies shall not be deemed to be the exclusive remedy for any breach of this Agreement but shall be in addition to all other remedies available at law or in equity.
22. The Employee agrees that the Employee's sole and exclusive remedy for any breach of this Agreement or any other agreement by Employer will be limited to monetary damages and that the Employee will not make any claim in respect of any rights to or interest in any Confidential Information or Proprietary Property.
23. The Employee acknowledges that the services provided by the Employee to Employer are unique. The Employee further agrees that irreparable harm will be suffered by Employer in the event of the Employee's breach or threatened breach of any of his or her obligations under this Agreement, and that Employer will be entitled to seek, in addition to any other rights and remedies that it may have at law or equity, a temporary or permanent injunction restraining the Employee from engaging in or continuing any such breach hereof. Any claims asserted by the Employee against Employer shall not constitute a defence in any injunction action, application or motion brought against the Employee by Employer.
24. Governing law and jurisdiction: The matters connected with the performance thereof shall be construed, interpreted, applied and governed in all respects in accordance with the laws of the Republic of India. The courts in New Delhi shall have the exclusive jurisdiction to deal with matters arising in connection with this.
25. Dispute Resolution: All disagreements arising in connection with this Agreement ("Disagreement") or the terms thereof; shall be initially referred to in writing for mediation to the Authorized Representatives, which will be nominated by both the Parties. If any "Disagreement" remains unresolved for twenty (20) days from the initial referral, either Party may request a further reconciliation between Senior Representatives (of both the Parties) within a further ten (10) days. The location of any Disagreement by way of mediation and reconciliation shall be held at the offices of Employer if not its Legal representatives. In case the best efforts, at mediation and reconciliation fail, then, the Parties shall be at liberty to commence Arbitration proceedings under the Arbitration and Conciliation Act, 1996 as amended from time to time. The number of arbitrators shall be one and shall be a legal professional of more than fifteen years' experience. The arbitrator shall be impartially selected by both Parties within 7 (seven) days. The seat, or legal place, of arbitration shall be New Delhi, India. The language to be used in the arbitration shall be English. The governing law of the contract shall be the substantive law of India.
26. The Employee hereby agrees to indemnify and keep indemnified and hold harmless Employer, its affiliates and their representatives, from and against any damage, loss, cost, expenses (including all expenses and costs of enforcing their respective rights under this Agreement) arising out of or resulting from: (a) any use or disclosure by the Receiving Party or its Affiliate or Representative of any Confidential Information; or (b) any breach of any term of this Agreement by the Receiving Party or its Affiliate or any of their Representative.
27. Damages - The Employee agrees and acknowledges that if the Employee fails to comply with any of its obligations under this Agreement or commits any other breach of this Agreement, the Employer will suffer immediate and irreparable harm for which monetary damage to the Employer will not be sufficient. Without prejudice to any rights and remedies otherwise available to the Employer under law or equity, including the right to claim damages for breach, the Employer shall be entitled to specific performance,

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injunctive and other equitable relief as a remedy for any breach of this Agreement by the Employee.. The parties agree that quantifying losses arising from Employee failures to comply with any of its obligations and any other breach of the Agreement is inherently difficult insofar, and further stipulate that the agreed upon sum for partial damages is not a penalty, but rather a reasonable measure of partial damages, based upon the parties' experience in the industry and given the nature of the Agreement. Nothing herein shall limit the Employer's right to pursue actual damages and the Employer shall have the right to pursue all remedies available to it at law including, without limitation, a decree of specific performance and/or injunctive relief and other equitable relief as a remedy for any breach of this Agreement by the Employee.

28. Injunctive Relief - That the Employee covenants and agrees that a breach by the Employee of the provisions of this Agreement will constitute such damage as will be irreparable and the exact amount of which will be impossible to ascertain and, for that reason, agrees that in such eventuality, the Employer will be entitled to an injunction to be issued by any court of competent jurisdiction restraining and enjoining the Employee under the present law for the breach of this Agreement in addition to the right any other remedies at law or equity, to enforce such provisions.

Employer is committed to protecting its Employees, staff, clients and others from illegal or damaging actions either knowingly or unknowingly. Internet/Intranet/Extranet-related systems, including but not limited to computer equipment, software, operating systems, storage media, network accounts providing electronic mail, WWW browsing, and FTP, are the property of Employer or it's client. These systems are to be used for official business purposes only in serving the best interests of Employer, and of its clients and customers. Effective security is a team effort involving the participation and support of every Employer employee, staff, consultant, affiliate, contractor, and temporary employee who deals with information and/or information systems ("End User" or "Employee").

29. Equipment and Software Use:

- a. The work carried out by Employer and/or its clients is of a confidential nature, and at all times, should be treated as Confidential Information and protected from unauthorized disclosure. Employee shall not divulge to a person outside Employer and/or its clients any such information or aid the outward transmission of any such information or data.
- b. All back- up information, graphics, data, statistics, reports etc prepared for or obtained as a result of such work and activity is similarly completely confidential to Employer and/or its clients and must be used for official purposes only.
- c. No such information may be removed from Employer and/or its clients's premises (other than in the ordinary course of business) without the prior written consent and express authority of Employer.
- d. If Employee engagement with Employer and/or its clients is terminated for any reason, Employee shall unconditionally and promptly immediately return to Employer and/or its clients all of Employer and/or its clients's documents, materials, precedents, data, files and Confidential Information contained and/ or stored in any form or medium (material) which is in Employee possession or control.
- e. Employee agrees that the material is valuable and proprietary information of Employer and/or its clients and agree and confirm that Employee will not at any time use or describe the name of Employer and/or its clients, matters or names of transactions nor in any matter attempt to misuse the reputation or goodwill of Employer and/or its clients for Employee personal benefit. Employee will not use any of the aforesaid material and/or Confidential Information in any curriculum vitae, biodata, resume or professional description and activity
- f. Any deliberate (or accidental) infringement of these rules shall be regarded as a serious breach of contract, term rules and the terms of Agreement.

30. Equipment & Software:

- a. During the course of Employee Engagement with Employer and/or it's clients, Employee may be provided access to an ID Card, calculator, mobile handset, mobile SIM card, desktop computer, laptop, internet data card, library books, stationary and materials and other software and hardware equipment (collectively the "Equipment"). Employees understand and agree that:
- b. Employee will not remove any Equipment installed in Employer and/or its clients's premises from such premises without the express prior written permission of Employer Senior Management and Supervisor or Manager;
- c. Employee will report the loss or damage to any Equipment in Employee possession to the Employer Senior Management and Supervisor or Manager immediately and in any event within 24 hours and at the earliest opportunity of such loss or damage;
- d. In case the Equipment is, in any case, damaged, lost, stolen, Employee shall be responsible for its cost of its replacement.

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- e. In case the Equipment gets broken due to wear and tear, Employee shall have it inspected by Employer's tech team promptly within 24 hours.
 - f. Employee will be solely and completely responsible for the Equipment in Employee possession and will pay the complete costs incurred in replacing any damaged or lost equipment.
 - g. No software and / or related risks other than those owned or leased by the business must be used in the Equipment of Employer and/or its clients. All software must be purchased new from recognized and reputable suppliers, backed by a confirmation that all such items are free from viruses, etc and /or with a guarantee/liability acceptance in the event that any viruses which have caused damage were present on purchase.
31. Employee further understand and agree that:
- a. Unauthorized access to, or in any way tampering with, any Equipment, computer system or software, computer installation, will be regarded as gross misconduct and will render the offender liable to dismissal and damages. Even of no actual damage results, unauthorized penetration of the system damages its integrity and confidentiality, which are high value to Employer and/or its clients. It should be noted that the classification of such access as serious misconduct (that is, as a dismissible offence) applies even where such access is performed merely as a prank or for fun or to test the defences.
 - b. Employee hereby declare and confirm that upon Employee resignation and/or termination from Employer, Employee will hand over all Equipment in proper working order which was given to Employee to carry out the work assigned to Employee else Employee authorize Employer to recover the value of material from Employee full and final settlement.
 - c. Employee understand the failure to full and proper return of any Equipment will be considered theft and can lead to criminal prosecution and/or civil or criminal litigation by Employer and/or its clients.
32. General Use and Ownership
- a. Employee are responsible for exercising good judgment regarding the reasonableness of personal use.
 - b. For security and network maintenance purposes, authorized individuals within Employer or it's client may monitor equipment, systems and network traffic at any time, per their Audit Policy.
 - c. Employer or it's client reserves the right to audit networks and systems on a periodic basis to ensure compliance with this policy.
33. Security and Proprietary Information
- a. Keep passwords secure and do not share accounts. Employee are fully responsible for the security of Employee passwords and accounts. System level passwords shall be changed quarterly; user level passwords should be changed every 60 days or as per Employer's client policy
 - b. Postings by Employee from an Employer or it's client email address to newsgroups should contain a disclaimer stating that the opinions expressed are strictly their own and not necessarily those of Employer or it's client, unless posting is in the course of business duties.
 - c. Employee must always use extreme caution when opening e-mail attachments received from unknown senders, which may contain viruses, e-mail bombs, or Trojan horse code and related threats.
34. Unacceptable Use
- a. Under no circumstances are Employee authorized to engage in any activity that is illegal under local, state, federal or international law while utilizing Employer or the client-owned resources. The following activities are, in general, prohibited. Employee may be exempted from these restrictions during the course of their legitimate job responsibilities (e.g., systems administration staff may have a need to disable the network access of a host if that host is disrupting production services). The lists below are by no means exhaustive but attempt to provide a framework for activities which fall into the category of unacceptable use.
35. System and Network Activities: The following activities are strictly prohibited to Employee, with no exceptions and shall be considered grounds for immediate termination:
- a. Violations of the rights of any person or Employer protected by copyright, trade secret, patent or other intellectual property, or similar laws or regulations, including, but not limited to, the installation or distribution of "pirated" or other software products that are not appropriately licensed for use by Employer or it's client.
 - b. Unauthorized copying of copyrighted material including, but not limited to, digitization and distribution of photographs from magazines, books or other copyrighted sources, copyrighted music, and the installation of any copyrighted software for which Employer or it's client or the end user does not have an active license is strictly prohibited.

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- c. Exporting software, technical information, encryption software or technology, in violation of international or regional export control laws, is illegal. The appropriate management should be consulted prior to export of any material that is in question.
 - d. Introduction of malicious programs into the network or server (e.g., viruses, worms, Trojan horses, e- mail bombs, etc. Keep passwords secure and do not share accounts. Employee are fully responsible for the security of Employee passwords and accounts.
 - e. Revealing Employee account password to others or allowing use of Employee account anytime by others. This includes family and other household members when work is being done at home.
 - f. Making fraudulent offers of products, items, or services originating from any Employer id indirectly or directly or it's client account.
 - g. Effecting security breaches or disruptions of network communication. Security breaches include, but are not limited to, accessing data of which Employee are not an intended recipient or logging into a server or account that Employee are not expressly authorized to access, unless these duties are within the scope of regular duties. For purposes of this section, "disruption" includes, but is not limited to, network sniffing, pinged floods, packet spoofing, denial of service, and forged routing information for malicious purposes.
 - h. Port scanning or security scanning is expressly prohibited unless prior notification in writing is made.
 - i. Executing any form of network monitoring which will intercept data not intended for the Employee host unless this activity is a part of the Employee normal job/duty.
 - j. Circumventing user authentication or security of any host, network or account.
 - k. Using any program/script/command, or sending messages of any kind, with the intent to interfere with, or disable, a user's terminal session, via any means, locally or via the Internet/Intranet/Extranet.
 - l. Unauthorized use, or forging, of email header information.
 - m. Any other related activity determined at the sole discretion of Employer.
36. Waiver. Any waiver of a default under this Agreement must be made in writing and shall not be a waiver of any other default concerning the same or any other provision of this Agreement. No delay or omission in the exercise of any right or remedy shall impair such right or remedy or be constructed as a waiver. A consent to or approval of any act shall not be deemed to waive or render unnecessary consent to or approval of any other or subsequent act.
37. Each party hereto represents and warrants that it has the full power and authority to enter into and perform this Agreement, and each party knows of no law, rule, regulations, order, agreement, promise, undertaking or other fact or circumstance which would prevent its full execution and performance of this agreement.

IN WITNESS WHEREOF Employer has caused this Agreement to be executed as of the

NAME: Khushbu Dadoo

DATE: _____

I, Rizwan Khan, understand and agree that Employer reserves the right to bring civil litigation and/or criminal litigation against the breach or threatened breach thereof by me in consideration of the mutual pledge and conditions enclosed in this Agreement.

By: 

Date: 2024 / 10 / 01

Address: jali karanj gali Abdul qadar siddiqui ward no 28 burhanpur MP 450331

(EMPLOYEE)

Title	Rizwan Khan - NGI Offer letter for Signature
File name	NGI_Offer_letter_Rizwan_Khan.docx and 1 other
Document ID	1dff1d5b3c81d3d6ded2354141fa010c989a1840
Audit trail date format	YYYY / MM / DD
Status	● Pending signature

Document History



SENT

2024 / 09 / 30

20:44:50 UTC-4

Sent for signature to Rizwan Khan (anrizwan0305@gmail.com) and Khushbu Dadoo (khushbu.dadoo@nextgeninvent.com) from info@nextgeninvent.com
IP: 68.129.196.4



VIEWED

2024 / 09 / 30

23:28:22 UTC-4

Viewed by Rizwan Khan (anrizwan0305@gmail.com)
IP: 110.227.52.112



SIGNED

2024 / 10 / 01

00:22:48 UTC-4

Signed by Rizwan Khan (anrizwan0305@gmail.com)
IP: 110.227.60.112



INCOMPLETE

2024 / 10 / 01

00:22:48 UTC-4

This document has not been fully executed by all signers.